

FYI, Dale has the lead on this one.

Thanks,

Kay

"Thompson, Peter J." <pthompson@akllp.com> on 04/26/2001 01:18:30 PM
To: <Don.Hammond@enron.com>, <Bill.Williams@enron.com>, "Kay Mann (E-mail)" <kay.mann@enron.com>, "Dale Rasmussen (E-mail)" <Dale.Rasmussen@enron.com>
cc: "THOMAS CONSTANTINE" <TCONSTAN@LLGM.COM>

Subject: RE: LV Cogen ABB Agreement

I have not circulated a copy of the LV Cogen/ABB Agreement since January 8, 2001. I have not seen a 3/27/01 version. I had previously sent an e-mail to Dale indicating that the contractor's comments to the ABB Agreement were not made to the Exhibit B-1 of the LV Cogen/ABB Agreement that I have. What I currently have as Exhibit B-1 is what Dale had sent to me on January 5, 2001 as incorporating Don Hammond's comments. The current contractor comments contain many discrepancies (in addition to those that are shown as a redline). Please let me know if I should only incorporate the contractor's redlined changes, or should I conform Exhibit B-1 to mirror what is in the contractor's comments? Perhaps if I could go through the contractor's comments with one of you, we could resolve what should and should not be in Exhibit B-1 of the agreement.

-----Original Message-----

From: Don.Hammond@enron.com [mailto:Don.Hammond@enron.com]
Sent: Thursday, April 26, 2001 1:30 PM
To: Bill.Williams@enron.com
Cc: THOMAS CONSTANTINE; Thompson, Peter J.
Subject: Re: LV Cogen ABB Agreement

Exhibit A of the ABB breakout agreement does not need to be revised to show losses. Losses are specified in Exhibit B-1, Section 10.0. These are the latest revised loss values as provided by ABB.

I have a draft of that agreement dated 3/27/01. That draft contains the revisions proposed by MCS. As I indicated to you earlier, I don't have issue with those changes. My only other comment in looking through the agreement one more time is that the final two pages in Exhibit B-1 (in my copy pages 44 and 45) are performance specification sheets from ABB for an earlier design. The ratings, loss values, and dimensions on these sheets are not current. I suggest these pages be removed.

To: Don Hammond/PDX/ECT@ECT
cc: "THOMAS CONSTANTINE" <TCONSTAN@LLGM.COM>
Subject: LV Cogen ABB Agreement

This also is an issue I need your help on. Please review and respond to Peter, copy Tom Constantine. (or copy me and I will forward to Tom.)

----- Forwarded by Bill Williams/PDX/ECT on 04/25/2001

08:23 AM -----

(Embedded Enron Capital & Trade Resources Corp.

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to file: From: "Thompson, Peter J."

pic28301.pcx) <pthompson@akllp.com>

04/25/2001 06:24 AM

To: "Kay Mann (E-mail)" <kay.mann@enron.com>, "Dale Rasmussen (E-mail)"

<Dale.Rasmussen@enron.com>, "Bill Williams (E-mail)"

<Bill.Williams@enron.com>

cc:

Subject: LV Cogen ABB Agreement

As I indicated in my January 8, 2001 e-mail containing the first draft of the LV Cogen/ABB Transformer Agreement, to complete the agreement we will need to amend Exhibit A to show the electrical losses guarantee as well as the base load for the units. In prior deals we had one of the technical folks look at this. In addition, please let me know which of the contractor's changes, if any, I should make to the agreement. As I had mentioned in my earlier e-mail, it appears that the contractor's comments were made on an Exhibit B-1 other than the Exhibit B-1 attached to the LV Cogen Agreement as many of the numbers do not match up.